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Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

05/26/2026
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**DECLARATION OF FRANCISCUS
DYLAN ROSARIO IN SUPPORT OF
1008 B RENEWED MFL TAC**

(CCP § 2015.5)

Dept.: 610
Date: June 24, 2026

**DECLARATION OF DYLAN FRANCISCUS ROSARIO IN SUPPORT
OF RENEWED MOTION FOR LEAVE TO FILE THIRD AMENDED
COMPLAINT (CCP SECTION 1008(B))**

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** May 21, 2026 (serve
by Tue, June 2, 2026 per CCP section 1005(b)) **Filed by:** Plaintiff Dylan Franciscus Rosario,
Self-represented

DECLARATION

I, Dylan Franciscus Rosario, declare as follows:

1 **A. Identity and competence**

2 1. I am the Plaintiff in the above-captioned action. I am self-represented in pro per. I have
3 personal knowledge of the matters stated in this Declaration and, if called and sworn as a
4 witness, I could and would competently testify to them.

5 **B. Section 1008(b) identification of prior application**

6 2. Pursuant to Code of Civil Procedure section 1008, subdivision (b), I identify the prior appli-
7 cation and disposition as follows:

8 (a) **What application was made before:** Plaintiff's Motion for Leave to File a Second
9 Amended Complaint ("MFL-SAC"), filed in this action prior to April 30, 2026.

10 (b) **When and to what judge:** The MFL-SAC was set for, and heard or ruled upon by, the
11 Hon. Joseph M. Quinn in Department 302 of the San Francisco Superior Court, with the
12 operative ruling entered by minute order on April 30, 2026.

13 (c) **What order or decisions were made:** By minute order entered April 30, 2026, the Court
14 denied the MFL-SAC on procedural grounds related to the page-length and formatting of
15 the accompanying proposed Second Amended Complaint. The text ruling was adopted.
16 The Court's minute order also reflected that the Court "did not receive timely notice to
17 contest" the tentative on that line. Plaintiff's counsel of record (Plaintiff personally, ap-
18 pearing in pro per) objected on the record at the April 30, 2026 hearing to the procedural
19 posture by which the tentative was adopted, including the absence of a properly noticed
20 contest opportunity following the timing issues that bore on the tentative-contest me-
21 chanic. An accompanying ex parte application for permission to file an oversize brief
22 in connection with the MFL-SAC was also DENIED. The Court's order denying the
23 MFL-SAC did NOT reach the merits of the proposed amended causes of action.

24 (d) **Notice of entry:** On or about May 1, 2026, Defendant served and/or filed a Notice of
25 Entry of Order with respect to the April 30, 2026 minute order. (Per the docketed Notice
26 of Entry of Order filed May 1, 2026; verify Transaction ID 79369412 on SFTC portal.)

1 **C. The proposed Third Amended Complaint and the original MFL-TAC**

2 3. Separately, on April 28, 2026, I filed in this action a Motion for Leave to File Third Amended
3 Complaint (“MFL-TAC”), Transaction ID 79334688, with the proposed Third Amended Com-
4 plaint (“TAC”) lodged as an exhibit. The MFL-TAC and the proposed TAC are incorporated
5 into the renewed papers tendered herewith by reference. The TAC was drafted to comply with
6 all applicable formatting and page-limitation requirements, addressing the page-length defect
7 that drove the April 30, 2026 denial of the MFL-SAC.

8 **D. The three new pillars and the diligence showing required by CCP section 1008(b)**

9 4. Pursuant to CCP section 1008(b), I identify the new facts, circumstances, and law claimed to
10 be shown, and I make the diligence showing for each.

11 **Pillar 1: JKC3H8 v. Colton (2013) 221 Cal.App.4th 468 as newly surfaced controlling au-**
12 **thority.**

13 5. JKC3H8 v. Colton (2013) 221 Cal.App.4th 468 (Third Appellate District; Hoch, J.; review
14 denied) is published California Court of Appeal authority directly addressing the leave-to-
15 amend / anti-SLAPP sequencing problem and recognizing the trial court’s retained pleading-
16 management discretion under CCP sections 472, 473(a)(1), 576, and 425.16(f).

17 6. JKC3H8 was not formally tendered to this Court in connection with the April 30, 2026 MFL-
18 SAC line. I first formally tendered JKC3H8 to this Court by my Notice of Supplemental
19 Authority (JKC3H8 v. Colton) and my companion Rule 3.3(a)(2) Notice of Directly Ad-
20 verse Authority, both prepared and filed May 21, 2026 in connection with the June 24, 2026
21 consolidated calendar.

22 7. Diligence: Prior to and through April 30, 2026, my preparation focused on the page-length
23 and formatting defects that ultimately drove the procedural denial. The pleading-management
24 / anti-SLAPP sequencing issue that JKC3H8 directly addresses was not yet the frontal theory
25 of opposition that it later became when Defendant filed its April 23, 2026 MFL-SAC Opposi-
26 tion (the operative force of which I had only limited time to absorb before the April 30, 2026
27 ruling). With the consolidation of all pending Dept. 302 matters to the June 24, 2026 calendar

1 by court-ordered stipulation, I conducted further review of the leave-to-amend / anti-SLAPP
2 sequencing line of authority and located JKC3H8 as the published Court of Appeal decision
3 squarely addressing it. With reasonable diligence in the time available before the April 30,
4 2026 ruling, I was not in a position to present JKC3H8 in connection with the MFL-SAC line;
5 I am presenting it now, at the earliest practicable opportunity in the renewed posture.

6 **Pillar 2: The May 12, 2026 anti-SLAPP order in companion case CGC-25-631801.**

- 7 8. On May 12, 2026, in the companion action Rosario v. Abdelhalim, CGC-25-631801 (Dept.
8 302), the Court entered an order on the anti-SLAPP motion in that case. (Verify Transaction
9 ID on SFTC portal.) The 801 anti-SLAPP order is a new circumstance arising after the April
10 30, 2026 denial of the MFL-SAC in this action.
- 11 9. Diligence: The 801 anti-SLAPP order did not exist on or before April 30, 2026. It could not,
12 by definition, have been presented in connection with the original MFL-SAC. I am presenting
13 it now, at the earliest practicable opportunity, in connection with the renewed application on
14 the consolidated June 24, 2026 line.

15 **Pillar 3: The docketed defense MFL-SAC Opposition “no such authority exists” representa-**
16 **tion.**

- 17 10. Defendant’s MFL-SAC Opposition, filed April 23, 2026 in this action, contains on its Intro-
18 duction page the verbatim representation: “Plaintiff cites no authority to support the proposi-
19 tion that he can file his Motion for Leave to Amend, as no such authority exists to support his
20 motion.”
- 21 11. After the April 30, 2026 denial, JKC3H8 v. Colton has surfaced as published, controlling
22 California Court of Appeal authority directly supporting the proposition Defendant said did
23 not exist.
- 24 12. Diligence: The juxtaposition of the docketed defense representation that “no such authority
25 exists” and the post-denial emergence of JKC3H8 in the operative record is, itself, a new
26 circumstance. With reasonable diligence in the time available before the April 30, 2026
27 ruling, I did not anticipate that the operative defense theory would be a categorical denial of

1 the existence of leave-to-amend authority in the anti-SLAPP sequencing context. The full
2 operative force of that representation, as a litigation circumstance, became clear only as I
3 prepared the renewed and supplemental materials for the consolidated June 24, 2026 line. I
4 am presenting it now, at the earliest practicable opportunity.

5 **E. Why the renewed papers are not a CCP section 1008(a) motion for reconsideration**

6 13. This Renewed Motion is brought solely under CCP section 1008(b). I am not seeking recon-
7 sideration of the April 30, 2026 order. I am not seeking vacatur of any prior ruling. I am
8 seeking a fresh, freshly noticed order granting leave to file the TAC on a renewed showing of
9 new facts, circumstances, and law, on an independently noticed hearing line set for June 24,
10 2026, 9:00 a.m., Dept. 302, in compliance with CCP section 1005(b).

11 **F. The proposed amendment cures the “no leave” defect and satisfies the substantive amend-
12 ment authorities**

13 14. The TAC has been drafted to comply with all applicable formatting and page-limitation re-
14 quirements, addressing the procedural defect that drove the April 30, 2026 denial. The TAC
15 pleads each cause of action with the specificity required by Defendant’s April 13, 2026 De-
16 murrer, including specificity as to date, speaker, and content of the alleged fraudulent repre-
17 sentations, and including express pleading of each invoked Insurance Code section 790.03(h)
18 sub-paragraph and each invoked Fair Claims Settlement Practices Regulations provision (10
19 CCR sections 2695.1 through 2695.8 et seq.). The TAC adds a stand-alone declaratory relief
20 count under CCP section 1060 that articulates a present controversy distinct from the other
21 counts.

22 15. The TAC does not add new defendants. It refines and supplements the operative theories
23 already pleaded in the FAC; it is not a wholesale substitution of theories.

24 **G. Posture, prejudice, and trial calendar**

25 16. As of the date of this Declaration, Defendant has never filed an Answer to the FAC in this
26 action. No deposition has been taken in this action. No document production has been made
27 (discovery is stayed under CCP section 425.16(g) pending the anti-SLAPP ruling). No trial
28 date has been set. The July 8, 2026 Case Management Conference has been set for 10:30

1 a.m., Department 610.

2 17. If the Court grants this Renewed Motion under CCP section 1008(b), I am prepared to file
3 the TAC promptly and to comply with any briefing schedule set by the Court for Defendant's
4 response to the TAC, including any deadlines under CCP section 471.5. Defendant has been
5 on notice of the substance of the TAC since the April 28, 2026 lodging.

6 **H. Procedural-defect preservation parallel to the companion 801 May 15, 2026 adoption-of-**
7 **tentative posture**

8 18. I further state, for the record, that the April 30, 2026 procedural posture in this action (under
9 which the tentative was adopted notwithstanding my objection on the record, and notwith-
10 standing the Court's notation that the Court "did not receive timely notice to contest") paral-
11 lels the May 15, 2026 adoption-of-tentative defect that has been documented in companion
12 case CGC-25-631801. This Declaration does not seek vacatur of the April 30, 2026 order. It
13 identifies, for the limited preservation purpose, that the April 30 posture is the subject of a
14 separate Request for Judicial Notice and Statement of On-Record Objection tendered on this
15 same June 24, 2026 line.

16 **I. Verification**

17 19. I make this Declaration based on personal knowledge of the matters stated, and where stated
18 on information and belief, I so state and believe such matters to be true.

19 I declare under penalty of perjury under the laws of the State of California that the foregoing is
20 true and correct.

21 Executed on May 21, 2026, at Rohnert Park, California.

22 _____
By: _____ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive
Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Dated: May 25, 2026

A handwritten signature in blue ink, appearing to read 'Francisco', with a stylized flourish at the end.

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this declaration.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	CCP 2015.5	Verification under penalty of perjury	Declaration signed and dated	Signature block
2	CRC 3.1113	Declaration in support of motion	Facts stated on personal knowledge	Declaration body
3	Evid. Code 702	Personal knowledge foundation where applicable	"I declare" opening	Opening paragraphs